

Santosh Kumar Yadav v. State of U.P.

Allahabad High Court · Division Bench · 25 February 2015 · WRIT - C No. 11335 of 2015 · **Writ dismissed; petitioner relegated to Section 127 appeal.**

HEADNOTE

A writ challenging a final assessment order of the Executive Engineer (Distribution & Trade), Urban Electric Distribution Khand, Kanpur, was not entertained. The Division Bench accepted the respondents' preliminary objection that a statutory appeal under Section 127 was available and dismissed the petition. The order attributes Section 127 to the Electricity Supply Code, 2003.

FACTUAL SUMMARY

Santosh Kumar Yadav filed a writ petition in the Allahabad High Court challenging a final assessment order of the Executive Engineer (Distribution & Trade), Urban Electric Distribution Khand, Kanpur. The State and the distribution respondents appeared through standing counsel and Dr. S.K. Yadav and opposed maintainability on the ground that a statutory appeal lay against that final assessment. The Division Bench heard the matter on 25 February 2015. The order does not record the assessment period, alleged irregularity, or demand amount.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

writ maintainability against final assessment

HOLDING

A writ petition challenging a final assessment order of the Executive Engineer will not be entertained when a statutory appeal under Section 127 is available; the petition is dismissed on that preliminary objection. ¶ 1

FLAG The Bench attributed Section 127 to the 'Electricity Supply Code, 2003'; the appeal lies under Section 127 of the Electricity Act, 2003.

PRINCIPLE TAGS

final-assessment-order-relegates-assessee-to-section-127-appeal

A writ challenging a final assessment order of the Executive Engineer (Distribution & Trade), Urban Electric Distribution Khand, Kanpur, was not entertained. The Division Bench accepted the respondents' preliminary objection that a statutory appeal under Section 127 was available and dismissed the petition.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE FINAL ASSESSMENT ORDER

Writ dismissed on the alternative-remedy objection without examining the assessment. ¶ 1